

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X  
JEAN BRUTUS,

Plaintiff,

-against-

THE CITY OF NEW YORK and  
NYPD OFFICER CHUN YU,

Defendants.

----- X

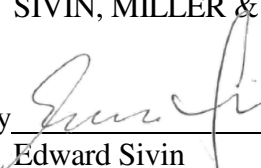
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
October 28, 2020

SIVIN, MILLER & ROCHE, LLP

By

  
\_\_\_\_\_  
Edward Sivin

Attorneys for Plaintiff  
20 Vesey St., Suite 1400  
New York, NY 10007  
(212) 349-0300

To:

THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007

NYPD OFFICER CHEN YU, c/o NYPD 61st Pct., 2575 Coney Island Ave, Brooklyn, NY 11223

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

----- X  
JEAN BRUTUS,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK and  
NYPD OFFICER CHUN YU,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his  
complaint herein, alleges as follows, upon information and belief:

**THE PARTIES**

1. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action, and within ninety (90) days of the dates on which the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the City on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.
4. That at all times herein mentioned, the City operated, controlled, managed, and

maintained The New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, NYPD Officer Chun Yu (hereinafter “Yu”) was and is a police officer employed by the NYPD.

6. That at all times herein mentioned, Yu was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Yu was acting under color of state law.

### **THE FACTS**

8. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

9. That on December 5, 2019, plaintiff was in his residence at 2177 East 21<sup>st</sup> Street, Brooklyn, NY.

10. That on December 5, 2019, at plaintiff’s residence at 2177 East 21<sup>st</sup> Street, Brooklyn, NY, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Yu (hereinafter referred to collectively as “the officers”), forcibly entered plaintiff’s residence en masse, without a warrant and without permission or consent and without otherwise being justified.

10a. That alternatively, the officers forcibly entered plaintiff’s residence with a warrant that was obtained fraudulently or by other improper means.

11. That after entering plaintiff’s residence the officers, without legal justification, physically seized plaintiff, pointed weapons at plaintiff, forced plaintiff to the ground, forcibly applied handcuffs to plaintiff, otherwise used force against plaintiff that was neither justified nor reasonable under the circumstances, and searched plaintiff’s residence without his permission or

consent.

12. That during the course of their search of his residence, the officers, without plaintiff's permission or consent, seized and took possession of approximately \$10,000 in cash and jewelry that belonged to plaintiff.

13. That to date, defendants have failed and refused to return the cash and jewelry that was seized from plaintiff's residence.

14. That after forcibly handcuffing and using force against plaintiff, and searching his residence, the officers formally placed plaintiff under arrest and thereafter forcibly imprisoned plaintiff and/or caused plaintiff to be imprisoned at various other locations, including a police precinct and Central Booking.

15. That on or about December 6, 2019, the officers also initiated and/or caused to be initiated criminal charges against plaintiff, accusing plaintiff of crimes of which he was innocent and of which the officers knew plaintiff to be innocent.

16. That none of the officers had probable cause to initiate and/or to cause to be initiated criminal charges against plaintiff.

17. That in support of those criminal charges, Yu signed a Criminal Court Complaint, under penalty of perjury, in which he made allegations against plaintiff that were false and that Yu knew to be false.

18. That in support of those criminal charges, Yu fabricated evidence, made statements and accusations about plaintiff to fellow officers and to the Office of the District Attorney and others that were false and that Yu knew to be false, and withheld exculpatory evidence.

19. That the fabricated evidence, false statements and accusations, and withheld

exculpatory evidence included, but was not limited to, the following: a) Yu falsely stated that he recovered cocaine, methamphetamine, and synthetic marijuana from inside plaintiff's residence; b) Yu falsely stated that he determined, based on his professional training and experience, that items he allegedly confiscated from plaintiff's residence were in fact cocaine, methamphetamine, and synthetic marijuana; and c) Yu withheld evidence that items he recovered from plaintiff's residence were, in fact, the legal substance creatine.

20. That the fabricated evidence, false statements and accusations, and withheld exculpatory evidence were material in nature and were likely to persuade a court and/or jury as to plaintiff's guilt or innocence.

21. That as a result of the aforementioned prosecution, plaintiff was required to appear in court on several occasions, was deprived of his liberty and freedom, and was restricted in his travel.

22. That the fabricated evidence, false statements and accusations, and withheld exculpatory evidence caused plaintiff to suffer an additional deprivation of liberty beyond that which he would have suffered merely by virtue of any probable cause for the prosecution.

23. That on or about December 23, 2019, all criminal charges against plaintiff were dismissed on the merits and the criminal prosecution terminated favorably to plaintiff.

24. That on or about December 6, 2019, the officers also initiated and/or caused to be initiated against plaintiff a civil action or proceeding with the New York State Office of Children & Family Services, Child Protective Services (hereinafter "CPS"), falsely and maliciously accusing plaintiff of possession of and/or selling drugs from his residence in the presence of his minor child.

25. That the officers did not have probable cause to initiate and/or to cause to be

initiated the aforesaid CPS proceeding against plaintiff.

26. That in support of the aforesaid CPS proceeding, the officers made statements and accusations about plaintiff to CPS that were false and that they knew to be false.

27. That as a result of the aforesaid CPS proceeding, plaintiff was required to undergo interviews and interrogation by CPS, was stigmatized, was listed in the New York State Child Abuse and Maltreatment Register, was compelled to undergo drug testing, risked losing custody of his minor child, and was otherwise deprived of liberty and property rights.

28. That during the pendency of the CPS proceeding, the officers continued to make statements and accusations about plaintiff to CPS that were false and that they knew to be false, and the officers intentionally withheld from CPS information that they knew would be exculpatory for plaintiff.

29. That on or about January 31, 2020, the administrative charges against plaintiff by CPS were dismissed and CPS notified plaintiff that the charges against him were “unfounded.”

30. That the aforementioned actions of the officers were intentional, spiteful, and malicious in nature.

31. That as a further consequence of the aforementioned actions of the officers, plaintiff, who had been gainfully employed as a livery driver, had his Taxi & Limousine Commission license suspended and was therefore unable to continue in that line of employment.

32. That as a result of the foregoing actions by the City and the officers, plaintiff sustained physical, emotional, and psychological injuries, was damaged in his name and reputation, endured and will continued to endure pain and suffering and loss of enjoyment of life, incurred and will incur lost earnings, healthcare expenses, and other economic loss, and was otherwise damaged.

**FIRST CAUSE OF ACTION AGAINST BOTH DEFENDANTS**

(False Arrest and Imprisonment)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforementioned actions of the officers, including Yu, constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

**SECOND CAUSE OF ACTION AGAINST YU**

(42 USC § 1983 Claim Arising From False Arrest and Imprisonment)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforementioned false arrest and false imprisonment of plaintiff constitute illegal seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

**THIRD CAUSE OF ACTION AGAINST BOTH DEFENDANTS**

(Assault and Battery)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That the aforementioned actions of the officers, including Yu, constitute an assault and battery of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

**FOURTH CAUSE OF ACTION AGAINST YU**  
(42 USC § 1983 Claim Arising From Assault and Battery)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforementioned assault and battery of plaintiff constitute an illegal seizure and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitles plaintiff to recover damages pursuant to 42 USC § 1983.

**FIFTH CAUSE OF ACTION AGAINST BOTH DEFENDANTS**  
(Conversion Under New York State Law)

41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid actions by the officers, including Yu, in confiscating, keeping, and failing to return to plaintiff the cash and jewelry that they removed from plaintiff's apartment constitute a conversion under New York State law, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

**SIXTH CAUSE OF ACTION AGAINST YU**  
(42 USC § 1983 Claim Arising From Conversion)

43. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

44. That the aforesaid conversion constitutes an illegal seizure in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and



entitles plaintiff to recover damages pursuant to 42 USC § 1983.

**SEVENTH CAUSE OF ACTION BOTH DEFENDANTS**

(Malicious Prosecution)

45. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

46. That the aforementioned actions of the officers, including Yu, constitute malicious prosecutions of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of *respondeat superior*.

**EIGHTH CAUSE OF ACTION AGAINST YU**

(42 USC § 1983 Claim Arising From Malicious Prosecution)

47. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

48. That the aforementioned malicious prosecutions of plaintiff constitute illegal seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

**NINTH CAUSE OF ACTION AGAINST YU**

(Denial of Right to Fair Trial Under 42 USC Section 1983)

49. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

50. That the aforesaid actions by Yu constitute denials of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the

U.S. Constitution, and entitle plaintiff to recover monetary damages under 42 USC Section 1983.

**TENTH CAUSE OF ACTION AGAINST THE CITY**  
(Negligent Training, Supervision and Retention)

51. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

52. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the training, supervision, and retention of the officers, and in particular the training of the officers in the processes and methods of identifying illegal drugs.

53. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

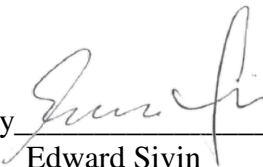
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WHEREFORE, plaintiff demands judgment against defendants on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against Yui in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against Yu pursuant to 42 USC § 1988, and the costs and

disbursements of this action.

Dated: New York, New York  
October 28, 2020

Yours, etc.  
SIVIN, MILLER & ROCHE, LLP

By  \_\_\_\_\_  
Edward Sivin

Attorneys for Plaintiff  
20 Vesey Street, Suite 1400  
New York, NY 10007  
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York  
October 28, 2020

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EDWARD SIVIN

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Index No.

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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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**VERIFIED COMPLAINT**

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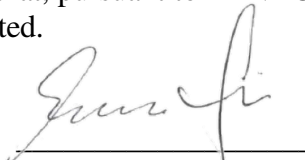
**SIVIN, MILLER & ROCHE, LLP**

Attorneys for Plaintiff  
20 Vesey Street, Suite 1400  
New York, NY 10007  
(212) 349-0300  
FAX (212) 406-9462

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Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



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EDWARD SIVIN

Dated: New York, New York  
October 28, 2020